

WHOLESALE FIT CONTRACT RATE 2018 - 2019

11 September 2018

This contract is made between

**NAM NGHI PHU QUOC ISLAND -
A B PHU QUOC CORPORATION**
Hamlet 4, Cua Can Commune,
Phu Quoc District, Kien Giang Province, Vietnam
Tel: (84-297) 378 8889 * Fax: (84-297) 368 8889
Hereinafter called "The Resort"

365 TRAVEL
#7 Alley 26, Nguyen Hong Str., Dong Da Dist., Hanoi,
Vietnam
Tel: (84-24) 3633 0589
Hereinafter called "The Company"

1. ROOM RATES 2018 - 2019 (Validity from 01 Nov 2018 – 31 Oct 2019)

ROOM TYPE		HIGH SEASON	PEAK SEASON	NORMAL SEASON
		01.11.2018 – 22.12.2018 11.01.2019 – 04.02.2019 11.02.2019 – 31.03.2019	23.12.2018 - 10.01.2019 05.02.2019 – 10.02.2019	01.04.2019 – 31.10.2019
Hotel	Blue Ocean Deluxe	6,210,000	7,590,000	5,290,000
	Blue Ocean Premier Deluxe	7,820,000	9,200,000	6,900,000
	Blue Ocean Suite 2 Bedrooms	11,960,000	13,340,000	11,040,000
Villa	Sunrise/Sunset Ocean Villa 1 Bedroom	12,420,000	13,800,000	11,500,000
	Tropical Garden Villa 2 Bedrooms	14,720,000	16,100,000	13,800,000
	Sunrise Ocean Villa 2 Bedrooms / Duplex	20,470,000	21,850,000	19,550,000
	Nam Nghi Family Residence 2 Bedrooms	28,520,000	29,900,000	27,600,000

2. PRIVILEGES IN ROOM:

Complimentary inclusions:

- Complimentary airport transfers and shuttle service to downtown as resort's schedule
- Daily breakfast for 2 persons / 4 persons based on room type at Ocean Reflection.
- Welcome drinks, fruit basket upon arrival.
- Daily in-room 04 bottles of mineral water.
- Nightly turndown service.
- Wired and wireless internet access throughout the resort.
- Use of kayaks and bicycles for kids and adults.
- Complimentary yoga classes and meditation at the Resort Garden or Spa Yoga Studio, subject to availability.
- Complimentary access to outdoor infinity Pool, Fitness Centre and Business Lounge.

3. EXTRA BED POLICY

- Extra bed shall incur a surcharge of VND1,840,000net per unit per night, including breakfast
- Only one extra bed is allowed per room. Not applicable for villas

4. CHILDREN POLICY (Maximum 02 children sharing with parents using existing beds)

- Under 6 years old: free of charge for accommodation and breakfast if sharing bed with parents
- 6 – below 12 years old: free of charge for accommodation if sharing bed with parents, surcharge for breakfast is VND460,000net/night per person.
- Extra bed for children below 12 years old shall be surcharged at VND1,288,000net/night per person including breakfast.
- 12 years old and above is considered as an adult. Extra bed is required and surcharged at VND1,840,000net per unit per night including breakfast, subject to availability

- The Resort provides complimentary baby cots/cribs upon request, subject to availability

5. LENGTH OF STAY RESTRICTION

- Minimum 03-consecutive night stay is required for the Peak period (23 Dec 2018 – 10 Jan 2019)
- Minimum 02-consecutive night stay is required for the Tet Holiday period (05 Feb 2019 – 10 Feb 2019)

6. ROOM TYPE

ROOM TYPE	TOTAL		CONNECTING ROOM	MAX ADULTS	MAX CHILDREN	COMMENTS
Blue Ocean Deluxe	53 Rooms		Yes	2	2	Or 3 Adults
	21 Kings	32 Twins				
Blue Ocean Premier Deluxe	4 Rooms		No	2	2	Or 3 Adults
	4 Kings					
Blue Ocean Suite 2 Bedrooms	4 Units		Yes	4	2	Or 5 Adults
	4 Kings	4 Queens				
Sunrise/Sunset Ocean Villa 1 Bedroom	22 Rooms		No	2	2	
	22 Kings					
Tropical Garden Villa 2 Bedrooms	6 Units		No	4	2	
	12 Kings					
Sunrise Ocean Villa 2 Bedrooms / Duplex	4 Units		No	4	2	
	7 Kings	1 Twin				
Nam Nghi Family Residence 2 Bedrooms	4 Units		No	4	2	Or 6 Adults
	4 Kings	4 Twins				

7. FREE-SALES OFFER

This contract rate will be used as free-sales for whole year (only for Blue Ocean Deluxe and Sunrise/Sunset Ocean Villa 1 bedroom) and the other room categories are on request. The exception of closed-out dates will be advised in advance. In case, if room allotment is strictly required, the resort will block case by case and send Allotment Agreement.

8. SPECIAL OFFERS

	HOTEL ROOMS & VILLAS
Early Bird	- 10% off for booking in advance 45 days. Full payment is required 45 days prior to the arrival date (Non-refundable) - 15% off for booking in advance 60 days. Full payment is required 60 days prior to the arrival date (Non-refundable) - This offer is combinable with Bonus Night offer, Honeymoon & Anniversary offer (Non-refundable) - This offer is applicable for 3rd person & meal plan
Bonus Night	- Stay 6 pay 5 and multiple - Stay 10 pay 8 and multiple - Full payment is required 60 days prior to arrival date (Non-refundable) - This offer is combinable with Early Bird, Honeymoon & Anniversary offer (Non-refundable) - This offer is applicable for 3rd person & meal plan
Honeymoon & Anniversary	- Romantic in room & bath ritual set up - Celebrate cake offer on the celebration day - 15% discount on F&B menu at all outlets - 25% discount on An Mai Spa
Blackout dates	- 23 Dec 2018 – 10 Jan 2019 (inclusive) - 05 Feb 2019 – 10 Feb 2019 (inclusive)

9. GALA DINNER

MEAL OPTION	PRICE PER ADULT	PRICE PER CHILD
Christmas Gala Dinner (24 Dec 2018) - Optional	VND 4,140,000	VND 2,070,000
New Year's Eve Gala Dinner (31 Dec 2018) - Compulsory	VND 6,440,000	VND 3,220,000

10. MEAL SUPPLEMENT (IF REQUIRED)

MEAL PLANS	PRICE PER ADULT	PRICE PER CHILD
Full Board With Beverage	VND 2,070,000	VND 1,035,000
Half Board With Beverage	VND 1,035,000	VND 520,000

Note:

- Full payment is required at the time of making reservation along with accommodation.
- Half and Full board are inclusive of a 4-course set menu with 2 drinks (soft drinks, local beers, wine by glass, juice and tea/coffee)
- All terms and conditions are following accommodation policies.
- Resort reserves the rights to amend or terminate with prior notice.
- Offers are recommended to check its availability upon making reservation.

11. VALIDITY FOR APPLICABLE MARKET - Worldwide Market

12. CONTRACT VALIDITY – 01 Nov 2018 – 31 Oct 2019 inclusive

13. CHECK-IN / CHECK-OUT TIME

- Check- in time is from 14:00 hours, and check- out time is at or before 12:00 noon.
- Extension of check -out time is subject to availability and incurs the following surcharges
- Check- out until 18:00 hours – 50% of contracted rate will be applied. Check - out after 18:00 hours – 100% of contracted rate will be applied.
- Request of early check- in before standard check- in time of resort is subject to availability and incur full charge of 100% on contracted rate.

14. NO-SHOW

100% of total rooms booked and confirmed shall be charged in case of no show upon arrival date and resort reserve the rights to release room and sell to any other parties.

15. EARLY DEPARTURE

Full length of stay at the contracted rate for the room category booked will be charged for all seasons.

16. RESERVATIONS

All reservations must be in writing and sent to the resort either by facsimile or e-mail with authorized signature(s). Telephone availability checks are not considered as a commitment for the reservation. The resort is not required to provide verbal confirmation of availability.

Reservation is subject to availability and confirmation from the resort and the rate is applicable upon receiving advance reservation. In case no prior reservation has been made, the published rates would be applied.

Room rates are applicable on your company's account as per the officially authorized travel agent voucher or bookings. Should guests pay by personal account, or extend their stay, regular published rates will be applied to protect the confidentiality of our agreement.

Flight detail should be provided 48 hours' prior guest arrival.

FOR RESERVATIONS:

Tel: (84-297) 3788 889

Fax: (84-297) 3776 888

Email: rsvn@namnghiresort.com

17. CANCELLATION / AMENDMENT

SEASON	NO CANCELLATION FEE	50% OF THE FULL STAY	100% OF THE FULL STAY
NORMAL SEASON	Before 14 days prior to arrival date	From 8 to 14 days prior to arrival date	Within 7 days prior to arrival date
HIGH SEASON	Before 30 days prior to arrival date	From 22 to 30 days prior to arrival date	Within 21 days prior to arrival date
PEAK SEASON	Before 45 days prior to arrival date	From 31 to 45 days prior to arrival date	Within 30 days prior to arrival date

***Note:** If reservation overlaps different seasons, terms and conditions of higher season is applied.

18. CREDIT

The Resort's credit manager will provide credit terms under a separate cover. Failure to comply with credit terms may result in suspension of the Resort's obligations of this agreement.

19. RATES

- Rates quoted are in VND net, inclusive of 5% service charge and 10% VAT and are non-commissionable.
- The above rates are valid for all markets and applicable for FIT only (below 10 rooms).
- Room rates are to be used as a component of packaged program by booking travel agency. Should guests wish to pay directly to the resort, available online room type and rates of the booking date will be applied.
- Leisure rates quoted in this contract are not applicable to group of ten (10) rooms or more. Group rates for leisure groups, Conventions, Meetings and Incentive groups are available upon request.

20. BILLING

If credit has been approved, The Company will be required to settle accounts due to The Resort within the time mentioned in the credit form of the invoice date. Should the Company fail to settle the accounts within the credit period, the Resort reserves the right to withdraw the credit facility. The Resort also reserves the right to refuse any new bookings on a credit basis until all outstanding accounts are settled. Invoices unpaid after the credit period will attract interest of 1.5% per month.

Payment policy is required as follows:

SEASON	100% OF THE FULL STAY
NORMAL SEASON	Full payment by 7 days prior to arrival date
HIGH SEASON	Full payment by 21 days prior to arrival date
PEAK SEASON	Full payment by 45 days prior to arrival date

Unless credit facilities have been established, by means of a Bank Guarantee, Floating Deposit, Telegraphic Transfer or such other security acceptable to the Resort, the amount and all other details of this must be discussed and agreed between the Company and the Resort.

21. BANK DETAILS

Name : CÔNG TY CỔ PHẦN A B PHÚ QUỐC
A/C No : 162 704 070 999 999 (VND)
Bank : HD Bank – PGD Thủ Dầu Một, CN Bình Dương
Swift Code : HDBCVNVX

22. BROCHURE

The Company will feature the Resort in its tour program(s) and brochure(s) with the Resort's precise standards, and include a photograph of the resort where appropriate. The Resort will provide the Company with such pictures, descriptive text and resort logos to enable the Company to advertise to the market and sell accommodation of the Resort. The

Company must ensure that the information included by it or on its behalf in any brochure or marketing material is accurate and updated from time to time and approved by the resort prior to publication.

23. GROUP POLICY

Group rates and MICE enquiry of ten (10) rooms or more, separate conditions will apply to special cases according to individual group booking confirmation with negotiated rates and terms.

24. UNDERTAKINGS AND GUEST STAYS

The Company undertakes not to invite in any person whose behavior may be prejudicial to the Resort. The Resort reserves the right to intervene if necessary. Guests may not bring in any food or drink from outside. The Company undertakes to ensure that their guests comply with all the rules and regulations of the Resort (in particular the ban on smoking in public areas). Therefore, the Company undertakes to remind their guests of the above provisions and to take responsibility for ensuring they comply with them.

25. AGREEMENT RATES ON THE INTERNET

The agreement rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distributions or retailing via the Internet. Otherwise the rates stipulated must be calculated based on at least a 25% mark-up to the existing agreed rates. The Company, without prior written approval from resort management, published rates will be applied.

26. FORCE MAJEURE

Neither party will be held responsible for failure to execute obligations specified herein directly or indirectly occasioned by or through or in consequence of war, change of statutes of the government, strikes, riots and acts of God or conditions beyond the control of either party.

27. ASSIGNMENT – AGREEMENT BETWEEN THE PARTIES

This agreement and any riders herein are specific to the Company and the Company may not assign any of the rights and duties or any of the obligations conferred upon it by this agreement or any riders to any natural or legal person without the prior written authorization of The Resort. Nothing in this agreement shall create or shall be deemed to create a partnership or other employer/employee relationship between the Parties.

28. GOVERNING LAW AND JURISDICTION

The law governing the agreement is the law of Vietnam. Any dispute, controversy or claim relating to the agreement shall be resolved by one or more arbitrators appointed in accordance with the Rules of Conciliation and Arbitration of the Vietnam International Arbitration of the Chamber of Commerce. The Arbitration shall take place in Ho Chi Minh City, Vietnam, and shall be held in Vietnamese.

29. SPECIAL REMARKS

This agreement supersedes any previous agreement rates of the resort and is valid upon acceptance of the above terms and conditions. In order for the resort to include your company in its listing for preferential rates, please notify your acceptance of all Terms and Conditions of this agreement by signing the duplicate of it on all pages and by mailing it duly stamped to the resort. Please note that scanned documents are considered as the original copies.

30. TERMINATION

This agreement can be terminated by either party, without penalty, for any reason upon thirty days prior written notification to the other party. Termination of this Agreement shall not extinguish the rights or obligations of the parties hereunder with respect to indemnification, trademarks, ownership and disposition of information, confidentiality, and accounting.

The Resort shall have the absolute right at any time by giving notice in writing to the Company Representative to cancel this Agreement forthwith including current and future reservations on the occurrence of any of the following events: Non-compliance with agreed trading terms: If the Company enters bankruptcy or liquidation whether compulsory or voluntarily (other than for the purposes of amalgamation or reconstruction) or compounds with its or their creditors or takes or suffers any similar action in consequence of debt or is served with notice of or relating to bankruptcy or liquidation.

31. ACCEPTANCE

If the above details meet with your approval, please sign a copy of this agreement and stamp with **365 TRAVEL** official company stamp and return to my attention no later than **30th Sep 2018**. Once the agreement is received, this will signify that **365 TRAVEL** has accepted and agreed upon the above rates and all Terms and Conditions. The agreement is not valid if a signed copy is not returned by the requested date or without a valid company stamp.

ON BEHALF OF THE COMPANY
365 TRAVEL

ON BEHALF OF THE RESORT
**NAM NGHI PHU QUOC ISLAND -
A B PHU QUOC CORPORATION**

Date:

Hà Minh Thư (Ms.)
Director of Sales and Marketing
Date:

Hà Đăng (Mr.)
Deputy General Director
Date: